

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 23, 2026
8:30 AM/1:30 PM

5. AN MARY DIAZ V. IVAN DEMETRIO LEON DIAZ

25FL0092

Petitioner filed a Requested for Order (RFO) on October 31, 2025, seeking child and spousal support. She concurrently filed an Income and Expense Declaration. Respondent was electronically served on November 10, 2025.

Respondent filed his Income and Expense Declaration on January 20, 2026 and his Income and Expense Declaration on January 26, 2026. Due to a procedural error, the matter was continued to the present date.

On April 9th, Respondent filed and served a Supplemental Declaration of Respondent and his updated Income and Expense Declaration.

Petitioner filed and served her updated Income and Expense Declaration on April 15th. She filed and served a Declaration of Attorney & Memorandum of Points & Authorities on April 17th.

Petitioner is requesting child and spousal support back to the date of filing the Petition. She asks that support be set to \$0 until August 1, 2025, which is the first full month the parties did not reside together. She also requests equal division of child support add-ons.

Respondent asks that Petitioner be imputed with full-time income at \$106 per hour plus health insurance, retirement, and parking. He asks that the court deny the request for retroactive child support and order shared childcare costs only after the right of first refusal has been given and Respondent's mother is also not available to provide childcare. Finally, he asks the court to deny spousal support in its entirety or, alternatively, set a termination date due to the short term nature of the marriage.

An award of temporary spousal support lies solely within the trial court's discretion regarding each party's respective need and ability to pay. See Marriage of Tong & Samson, 197 Cal. App. 4th 23, 29 (2011). As discussed by both parties in their respective briefs, support may be reduced based on the imputation of income. The amount of income imputed is to be based on that spouse's measurable earning capacity which is determined by (1) the ability of the spouse to earn consistent with the spouse's health, age, education, marketable skills, and employment history; and (2) the opportunity available for employment. In re Marriage of Simpson, 4 Cal. 4th 225 (1992). Here, the court is not persuaded by Respondent's argument that Petitioner is underemployed when he too is not working the standard 40 hour (or 36 in the medical profession) workweek. If anything, the

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court would be inclined to impute both parties with full-time income based on their present earnings however the court is concerned that doing so may result in a shortfall in the amount of support actually being paid which certainly would not be in the best interests of the children. That said, the court is adopting the Xspouse report attached as Exhibit B to the Declaration of Attorney & Memorandum of Points & Authorities filed by Petitioner on April 17, 2026.

Utilizing the same figures as outlined in Petitioner's Exhibit B, the court finds that child support is \$814 per month and spousal support per the Alameda formula is \$524 per month. Respondent is ordered to pay Petitioner \$1,338 per month as and for child support and temporary spousal support, payable on the 1st of the month until further order of the court or legal termination. This order is effective as of November 1, 2025.

The court finds the above order results in arrears in the amount of \$8,028 through and including April 1, 2026. The court orders Respondent pay Petitioner \$669 on the 15th of each month commencing on May 15, 2026 and continuing until paid in full (approximately 12 months). If any payment is late or missed the remaining balance is due in full with legal interest within five (5) days.

In addition to the foregoing monthly support payments, the parties are ordered to equally share in any uninsured medical care costs for the children and childcare costs when such costs are incurred as a result of employment or necessary education for employment. The parties are ordered to follow the procedures set forth in the attached FL-192.

Each party shall claim one minor child for tax purposes. The parties are to meet and confer to agree upon who will claim which child. If they cannot agree, the parties are to alternate claiming the children. Petitioner to claim the younger child on even tax years and the older child on odd tax years. Respondent to claim the younger child on odd tax years and the older child on even tax years.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #5: THE COURT IS ADOPTING THE XSPOUSE REPORT ATTACHED AS EXHIBIT B TO THE DECLARATION OF ATTORNEY & MEMORANDUM OF POINTS & AUTHORITIES FILED BY PETITIONER ON APRIL 17, 2026.

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UTILIZING THE SAME FIGURES AS OUTLINED IN PETITIONER'S EXHIBIT B, THE COURT FINDS THAT CHILD SUPPORT IS \$814 PER MONTH AND SPOUSAL SUPPORT PER THE ALAMEDA FORMULA IS \$524 PER MONTH. RESPONDENT IS ORDERED TO PAY PETITIONER \$1,338 PER MONTH AS AND FOR CHILD SUPPORT AND TEMPORARY SPOUSAL SUPPORT, PAYABLE ON THE 1ST OF THE MONTH UNTIL FURTHER ORDER OF THE COURT OR LEGAL TERMINATION. THIS ORDER IS EFFECTIVE AS OF NOVEMBER 1, 2025.

THE COURT FINDS THE ABOVE ORDER RESULTS IN ARREARS IN THE AMOUNT OF \$8,028 THROUGH AND INCLUDING APRIL 1, 2026. THE COURT ORDERS RESPONDENT PAY PETITIONER \$669 ON THE 15TH OF EACH MONTH COMMENCING ON MAY 15, 2026 AND CONTINUING UNTIL PAID IN FULL (APPROXIMATELY 12 MONTHS). IF ANY PAYMENT IS LATE OR MISSED THE REMAINING BALANCE IS DUE IN FULL WITH LEGAL INTEREST WITHIN FIVE (5) DAYS.

IN ADDITION TO THE FOREGOING MONTHLY SUPPORT PAYMENTS, THE PARTIES ARE ORDERED TO EQUALLY SHARE IN ANY UNINSURED MEDICAL CARE COSTS FOR THE CHILDREN AND CHILDCARE COSTS WHEN SUCH COSTS ARE INCURRED AS A RESULT OF EMPLOYMENT OR NECESSARY EDUCATION FOR EMPLOYMENT. THE PARTIES ARE ORDERED TO FOLLOW THE PROCEDURES SET FORTH IN THE ATTACHED FL-192.

EACH PARTY SHALL CLAIM ONE MINOR CHILD FOR TAX PURPOSES. THE PARTIES ARE TO MEET AND CONFER TO AGREE UPON WHO WILL CLAIM WHICH CHILD. IF THEY CANNOT AGREE, THE PARTIES ARE TO ALTERNATE CLAIMING THE CHILDREN. PETITIONER TO CLAIM THE YOUNGER CHILD ON EVEN TAX YEARS AND THE OLDER CHILD ON ODD TAX YEARS. RESPONDENT TO CLAIM THE YOUNGER CHILD ON ODD TAX YEARS AND THE OLDER CHILD ON EVEN TAX YEARS.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO*

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LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

NOTICE OF RIGHTS AND RESPONSIBILITIES REGARDING CHILD SUPPORT

Childcare and Health Care Costs and Reimbursement Procedures

Your child support order may include a provision for payment of childcare or uninsured health care costs. Childcare costs may be included as part of the monthly child support payment or reimbursable as a percentage of the costs. If the childcare costs are included as part of the monthly child support payment, you must pay that amount each month until the court changes (modifies) the child support order. If you need to change your child support order because there has been a change in the cost of childcare, see page 2.

If you have a child support order that includes a provision for the reimbursement of a percentage of childcare costs or a portion of the child's or children's health care costs and those costs are not paid by insurance, the **law says**:

1. **Notice.** You must give the other parent an itemized statement of the charges that have been billed for any childcare costs or health care costs not paid by insurance. You must give this statement to the other parent within a reasonable time, but no more than 90 days after those costs were given to you.
2. **Proof of full payment.** If you have already paid all of the childcare costs or uninsured health care costs, you must (1) give the other parent proof that you paid them and (2) ask for reimbursement for the other parent's court-ordered share of those costs.
3. **Proof of partial payment.** If you have paid only your share of the childcare costs or uninsured health care costs, you must (1) give the other parent proof that you paid your share, (2) ask that the other parent pay his or her share of the costs directly to the childcare or health care provider, and (3) give the other parent the information necessary for that parent to be able to pay the bill.
4. **Payment by notified parent.** If you receive notice from a parent that a childcare or uninsured health care cost has been incurred, you must pay your share of that cost within the time the court orders; or if the court has not specified a period of time, you must make payment (1) within 30 days from the time you were given notice of the amount due, (2) according to any payment schedule set by the health care provider, (3) according to a schedule agreed to in writing by you and the other parent, or (4) according to a schedule adopted by the court.
5. **Going to court.** Sometimes parents get into disagreements about childcare and health care costs. If you and the other parent cannot resolve the situation after talking about it, you can request that the court make a decision.
- a. **Disputed requests for payment.** If you dispute a request for payment made by the other parent, you may file a request for the court to resolve the dispute, but only if you pay the requested amount before filing your request.
- b. **Nonpayment.** If you claim that the other parent has failed to pay you back for a payment, or they have failed to make a payment to the provider after proper notice, you may file a request for the court to resolve the dispute.
- c. **Paid charges.** The court will presume that if uninsured health care costs or childcare costs for employment or necessary training for job skills have been paid, those costs were reasonable. If you want to dispute paid charges, you will have to show the court that the costs were unreasonable.
- d. **Attorney's fees.** If the court decides one parent has been unreasonable, it can order that parent to pay the other parent's attorney's fees and costs.
- e. **Court forms.** Use forms [FL-300](#) and [FL-490](#) to get a court date. See form [FL-300-INFO](#) for information about completing, filing, and serving your court papers.
6. **Court-ordered insurance coverage.** If a parent provides health care insurance as ordered by the court, that insurance must be used at all times to the extent that it is available for health care costs.
- a. **Burden to prove.** The parent claiming that the coverage is inadequate to meet the child's needs has the burden of proving that to the court.
- b. **Cost of additional coverage.** If a parent purchases health care insurance in addition to that ordered by the court, that parent must pay all the costs of the additional coverage. In addition, if a parent uses alternative coverage that costs more than the coverage provided by court order, that parent must pay the difference.
7. **Preferred health providers.** If the court-ordered coverage designates a preferred health care provider, that provider must be used at all times consistent with the terms of the health insurance policy. When any parent uses a health care provider other than the preferred provider, any health care costs that would have been paid by the preferred health provider if that provider had been used must be the sole responsibility of the parent incurring those costs.
8. **Need help?** Contact the family law facilitator in your county or call your county's bar association and ask for an experienced family lawyer.

Information Sheet on Changing a Child Support Order

General Info

The court has made a child support order in your case. This order will remain the same unless one of the parents requests that the support be changed (modified). An order for child support can be modified by filing a request to change child support and serving the other parent. If both parents agree on a new child support amount, they can complete, sign, and file with the court a *Stipulation to Establish or Modify Child Support and Order* (form [FL-350](#)). (**Note:** If the local child support agency is involved in your case, it must be served with any request to change child support and approve any agreement.)

Online Self-Help Guide

For more information about how child support works, visit: <https://selfhelp.courts.ca.gov/child-support>.

When a Child Support Order May Be Changed

The court considers several things when ordering the payment of child support.

- First, the number of children is considered, along with the percentage of time each parent has physical custody of the children.
- Next, the net disposable incomes of both parents are determined (which is how much money is left each month after taxes and certain other items like health insurance, union dues, or other child support ordered and paid are subtracted from a parent's paycheck). The court can also look at a parent's earning ability.
- The court considers both parents' tax filing status and may consider hardships, such as the cost of raising the parent's child from another relationship who lives with the parent.

A parent can request to change an existing order for child support when circumstances change significantly. For example if the net disposable income of one of the parents changes, parenting time changes, or a new child is born.

Examples

- You have been ordered to pay \$500 per month in child support. You lose your job. You will continue to owe \$500 per month, plus 10 percent interest on any unpaid support, unless you file a motion to modify your child support to a lower amount and the court orders a reduction.
- You are currently receiving \$300 per month in child support from the other parent, whose net income has just increased substantially. You will continue to receive \$300 per month unless you file a motion to modify your child support to a higher amount and the court orders an increase.
- You are paying child support based on having physical custody of your children 30 percent of the time. After several months it turns out that you actually have physical custody of the children 50 percent of the time. You may file a motion to modify child support to a lower amount.

How to Change a Child Support Order

To change a child support order, you must file papers with the court. *Remember:* You must follow the order you have now.

What forms do I need?

If you are asking to change a child support order, you must fill out one of these forms:

- Form [FL-300](#), *Request for Order* **or**
- Form [FL-390](#), *Notice of Motion and Motion for Simplified Modification of Order for Child, Spousal, or Family Support*

You must also fill out one of these forms, and attach proof of income for the past two months (like your paycheck stubs):

- Form [FL-150](#), *Income and Expense Declaration* **or**
- Form [FL-155](#), *Financial Statement (Simplified)*

What if I am not sure which forms to fill out?

Contact the family law facilitator in your county. You can find them here: www.courts.ca.gov/selfhelp-facilitators.htm.

After you fill out the forms, file them with the court clerk and ask for a hearing date. Write the hearing date on the form.

The clerk may ask you to pay a filing fee. If you cannot afford the fee, fill out these forms, too:

- Form [FW-001](#), *Request to Waive Court Fees* **and**
- Form [FW-003](#), *Order on Court Fee Waiver (Superior Court)*

You must serve the other parent. If the local child support agency is involved, serve it too.

- This means someone 18 or over—not you—must deliver copies of your filed court forms to the other parent, at least **16 court days** before the hearing. Add **5 calendar days** if delivered by mail within California (see Code of Civil Procedure section 1005 for other situations).
- **Court days** are weekdays when the court is open for business (Monday through Friday except court holidays). **Calendar days** include all days of the month, including weekends and holidays. To find court holidays, go to: www.courts.ca.gov/holidays.htm.

Blank copies of both of these forms must also be served:

- Form [FL-320](#), *Responsive Declaration to Request for Order*
- Form [FL-150](#), *Income and Expense Declaration*

Then the server fills out and signs a *Proof of Service*. Take this form, plus one copy, to the clerk and file it at least one week before your hearing.

Go to your hearing and ask the judge to change the support. Bring your tax returns from the last two years and your proof of income for the past two months (like your paycheck stubs). The judge will look at your information, listen to both parents, and make an order. After the hearing, fill out:

- Form [FL-340](#), *Findings and Order After Hearing* **and**
- Form [FL-342](#), *Child Support Information and Order Attachment*

Need help?

Contact the family law facilitator in your county or call your county's bar association and ask for an experienced family lawyer.

Information About Child Support for Incarcerated or Confined Parents

1. Child support. As of September 27, 2022, child support automatically stops if the parent who has to pay is confined against their will for more than 90 days in a row in jail, prison, juvenile detention, a mental health facility, or other institution.

Exception. Child support does not automatically stop if the parent who has to pay has money available to pay child support.

2. Past confinement. Child support also automatically stops during past confinement if it was ordered from October 8, 2015, through December 31, 2019, or January 1, 2021, through September 26, 2022, and the parent who has to pay was confined for more than 90 days in a row during the same time frame.

Exceptions for past confinement. Child support does not automatically stop if the parent who has to pay was in jail or prison for failing to pay child support or for domestic violence against the other parent or the child, or if they had money available to pay support.

3. Timing. The date child support automatically restarts will depend on the parent's release date. If you need to change your child support order, see page 2.

- a. **If released before January 1, 2024,** child support automatically restarts the first day of the first full month after the parent is released.
- b. **If released after January 1, 2024,** child support will automatically restart the first day of the 10th month after the parent is released.

Employment before the 10-month period ends: If the parent who has to pay support starts working before the date child support is set to automatically restart, the person who is owed support or the local child support agency can request the court restart the child support order early. The court may order a different amount of child support if appropriate.

4. More info. For more information about child support and incarcerated parents, see Family Code section 4007.5 or go to <https://selfhelp.courts.ca.gov/child-support/incarcerated-parent>. You can also contact the family law facilitator in your county and can find them here: www.courts.ca.gov/selfhelp-facilitators.htm.

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6. KRISTIN ESTRELLA V. ADOLFO ESTRELLA JR.

26FL0016

On January 30, 2026, Petitioner filed a Request for Order (RFO) seeking spousal support, attorney's fees, an order to sale the family residence and terminate the trust. She filed her Income and Expense Declaration concurrently therewith. All required documents were served on February 3rd.

Respondent filed his Income and Expense Declaration on April 15th. He filed his Responsive Declaration to Request for Order on April 16th. The court finds this to be late filed pursuant to Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made April 10th the last day for filing the Responsive Declaration to Request for Order therefore the document is late filed and the court has not read or considered it.

Petitioner is requesting guideline spousal support and \$10,000 in need-based attorney's fees. She further requests that the marital residence be listed for sale and the family trust be terminated. She asks that the real property located at 7074 Sinclair Drive in Shingle Springs be returned to her name alone.

Petitioner estimates Respondent's income is over \$300,000 per year. However, according to Respondent's Income and Expense Declaration, his prior employment terminated on April 3, 2026. According to Petitioner's Income and Expense Declaration she too is unemployed. In light of the foregoing, the court is setting spousal support to \$0. Additionally, the request for attorney's fees is denied as the court does not find either a disparity in income or Respondent's ability to pay for the fees of both parties.

The court is reserving jurisdiction over the request to terminate the trust, return the Sinclair Drive home to Petitioner's name alone, and to sale the marital residence. The parties are ordered to ensure that all mortgage payments on the home continue to be made timely.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.